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March 21, 2026

Clerk of Court

United States District Court
Western District of New York – Rochester Division
100 State Street
Rochester, NY 14614

Re: Moszkowski v. Rumsey et al., Case #: 6:26-cv-06015-EAW
U.S. District Court, Western District of New York

STATUS REQUEST

Dear Clerk of Court:

I respectfully write to confirm the status of this matter.

The Complaint and Motion to Proceed In Forma Pauperis were filed on January 6 and January 15 respectively. I have not received any ruling or further instructions.

I am currently abroad and do not have access to in-person filing. Because I am located overseas, I am submitting this correspondence through an online certified mailing service that provides reliable delivery within a few days. By contrast, postal mail directed to me takes several weeks to arrive and, on occasion, is not delivered, without any way for me to know that correspondence was sent. I respectfully bring this to the Court's attention as it affects my ability to receive communications and respond in a timely manner.

The conduct described in the Complaint is ongoing, and it is important for me to proceed to the next stage of the case, including service of process.

I would be grateful if the Court could confirm that my filings are complete and advise whether any additional information is required to allow the case to proceed to service.

I am also enclosing the following documents for the Court's convenience:

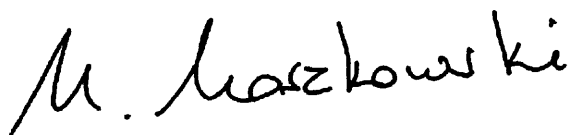
1. A copy of my Magistrate Judge Assignment response, originally submitted by mail on February 10, 2026, which does not appear to have been docketed; and
2. A copy of my previously submitted pro se In Forma Pauperis application, with a clarification in Item 9 (total monthly household expenses).

These are provided to ensure that the record is complete and that no administrative issue is preventing the matter from proceeding.

Respectfully submitted,

Marc Moszkowski,

Plaintiff, Pro Se

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

Revised 05/01 WDNY

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK**

MARC M. MOSZKOWSKI

(Name of Plaintiff or Petitioner)

v.

**MOTION TO PROCEED *IN FORMA PAUPERIS*
AND SUPPORTING AFFIRMATION**

26 -CV- 6015

DAVID L. RUMSEY, RUSTIN R. HOWARD, DEEPGULF, INC.

(Name of Defendant(s) or Respondent(s))

I, MARC M. MOSZKOWSKI, (print or type your name) am the plaintiff/petitioner in the above-entitled case and hereby request the Court's permission to proceed *in forma pauperis*.

In support of my motion to proceed without being required to prepay fees, costs, or give security therefor, I state that because of my poverty I am unable to pay the costs of this action or to give security therefor and that I believe I am entitled to redress.

I further declare that the responses which I have made in this affirmation below are true.

1. Are you presently employed? Yes ☐ No ☒
 My Employer's Name and Address is: _____

 My Gross Monthly Wages are: \$ _____
 If you are not presently employed, state
 Your Last Date of Employment: DECEMBER 2017
 Your Gross Monthly Wages at that time: \$0
 Is your spouse presently employed? Yes ☐ No ☐
 My Spouse's Employer's Name and Address is: _____

 My Spouse's Gross Monthly Wages are \$ _____
2. Have you received any money from any of the following sources within the past twelve months:
 - a. Business, profession or self-employment? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - b. Rent payments, interest or dividends? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - c. Pensions, annuities, disability, or life insurance payments? Yes ☒ No ☐
 If yes, state source and amount received per month \$ 1,023
 - d. Gifts or inheritances? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - e. Child Support? Yes ☐ No ☒
 If yes, state amount received each month \$ _____
 - f. Government Benefits (Social Security, SSI, Welfare, AFDC, Veterans, etc.)? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - g. Friends, Relatives or any other source? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 If you have not received any money from any of the above sources, please explain how you are currently paying your expenses:

3. What is your total gross monthly income today: \$ 1,023
4. How much cash do you have on hand? \$ 0

5. How much money do you have in a **checking account(s)**? \$ 150. ALL ABOVE \$800 SEIZED BY DEFENDANT DAVID L. RUMSEY
6. How much money do you have in a **savings account(s)**? \$ 0
7. If you are an inmate of a correctional facility, state the amount of funds in your inmate account (**NOTE: prisoners must have inmate account balances certified by an authorized official of the correctional facility and must include a signed Authorization for payment of the filing fee**): _____
8. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)? Yes ☒ No ☐
If so, **describe** the property in detail and give an **estimated value** of the property: SEIZED BY DAVID L. RUMSEY, APPROXIMATELY \$200,000

If you own property, are you paying off a **loan** or **mortgage** on it? Yes ☐ No ☒
If yes where are you obtaining the money to make such payments: _____

9. If you are not an inmate, state your **total monthly household expenses**:
Rent or mortgage \$ 0 Food \$ 250 Utilities \$ 250 All other expenses \$ 500
If your monthly expenses exceed the amount of income you listed in # 3 above, please explain how you are paying your expenses

10. List **all** of the people who are in your household and state the amount of money each one contributes to household expenses each month: _____

11. List the persons who are dependent upon you for support, state your relationship to those persons, and indicate how much you contribute toward their support: _____

12. Have you been adjudicated bankrupt within the past ten (10) years? Yes ☐ No ☒
If the answer is yes, please include the court and date of filing _____

I declare under penalty of perjury that the foregoing is true and correct.

Executed on 14 JANUARY 2026
(Date)

M. Marzowski
(Applicant's Signature)

PRISON CERTIFICATION SECTION

(Required for Prisoner Requests Only; Prisoner Requests Must Have This Section Completed By Prison Official)

I certify that the movant has the sum of \$ _____ on account to his/her credit at the _____
_____ Correctional Facility where s/he is currently confined.

I further certify that the movant has the following securities to his/her credit according to the institution's records: SEIZED BY DAVID L. RUMSEY

I further certify that the movant's average account balance was \$ _____ during the last six months.

Signature of Authorized Officer of Institution

Print Name of Authorized Officer of Institution

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